

2018 P T D 93

[Lahore High Court]

Before Masud Abid Naqvi, J

Mst. KOUSAR KAMAL

Versus

CHAIRMAN, CUSTOMS, FBR and others

Writ Petition No.9264 of 2012, decided on 21st Mach, 2017.

Customs Recovery Rules, 1992---

---R.7---Constitution of Pakistan, Art.199---Constitutional petition---Recovery proceedings were initiated by Model Custom Collectorate, "Peshawar" with regard to property situated at "Lahore"---Petitioner assailed said notices at Lahore under Art.199 of the Constitution---Validity---Relief claimed by petitioner could be granted by High Court within whose jurisdiction persons were performing/discharging their duties---High Court (Lahore) declined to interfere in the matter---Constitutional petition was dismissed in circumstances.

D.G. Customs Valuation, Karachi and another v. Messrs Trade International Lahore and others 2014 SCMR 15 and Sandalbar Enterprises (Pvt.) Ltd. v. Central Board of Revenue and others PLD 1997 SC 334 ref.

Sandalbar Enterprises (Pvt.) Ltd. v. Central Board of Revenue and others PLD 1997 SC 334 fol.

Sikandar Javed for Petitioner.

Usman Azam on behalf of Sarfraz Ahmad Cheema for Respondents.

ORDER

MASUD ABID NAQVI, J.---Precise grievance of the petitioner is that house No.73/B-2, Gulberg-III Lahore is jointly owned by the petitioner as well as her 05 brother and sisters and has been attached without any lawful justification vide impugned letters dated 05.03.2012 and 27.03.2012 issued by respondents Nos.4 and 5. Said property has no nexus with Messrs Delta Tires and Rubber Company Limited against which recovery proceedings have been initiated under the Customs Recovery Rules, 2001.

2. Learned counsel for the petitioner submits that impugned letters are not only illegal, unlawful but are not sustainable at law because the house in possession of the petitioner does not belong to brother of the petitioner namely Iqtedar Ahmad Chaudhary rather house is under the joint ownership. On the other hand, relying on the reported

judgments i.e. D.G. Customs Valuation, Karachi and another v. Messrs Trade International Lahore and others (2014 SCMR 15) and Sandalbar Enterprises (Pvt.) Ltd. v. Central Board of Revenue and others (PLD 1997 SC 334), learned counsel for the respondents argues that this Court has no jurisdiction to entertain and adjudicate upon the matter in issue and the house is owned by Iqtedar Ahmad Chaudhary in view of the record attached with parawise comments. I have heard the arguments advanced by the learned counsel for the parties and perused the record.

3. Perusal of the record reveals that property/house No.73/B-2, Gulberg-III Lahore measuring 04-kanals stands in the name of Iqtedar Ahmad Chaudhary as is evident from the record of SECP and impugned letters regarding attachment were issued to Iqtedar Ahmad Chaudhary/ Director of Messrs Delta Tires and Rubber Company Limited. Even otherwise, the impugned letters were issued by the Model Custom Collectorate, Peshawar and office of Superintendent Custom Division Hazara Abbottabad and the relief claimed is also against the abovementioned officials, hence the above relief can be granted by the High Court within whose jurisdiction the persons are performing/ discharging their duties. In reported judgment i.e. Sandalbar Enterprises (Pvt.) Ltd. v. Central Board of Revenue and others (PLD 1997 SC 334), the August Supreme Court of Pakistan held as under:--

"8. We may observed that it has become a common practice to file a writ petition either at Peshawar, or Lahore, or Rawalpindi or Multan etc. to challenge the order of assessment passed at Karachi by adding a ground for impugned the notification under which a particular levy is imposed. This practice is to be depreciated."

In view of above, this petition is not maintainable before this court and the same is accordingly dismissed.

MH/K-20/L Petition dismissed.